Township of NIPISSING
"Life the way it should be" 1888

Schedule "A" to
By-Law Number 2023-21.

WEBSITE AND SOCIAL MEDIA POLICY

Township of Nipissing Corporate Policy passed May 24, 2022
Amended March 21, 2023

POLICY STATEMENT:

The Corporation of the Township of Nipissing supports the use of a Website and Social Media platforms as a method of providing information to the public. Information and communication shared through these channels have a significant and lasting impact on the reputation of the Township Council and Staff, it is therefore vital that clear expectations are in place regarding Website and Social Media use.

PURPOSE:

The purpose of this Policy is to:

a) Assign responsibility for maintaining the Township Website and Social Media page;
b) Clearly outline the protocol for communicating Township information;
c) Clarify how and if the Township will reply to the comments and posts;
d) Establish parameters for deleting posts.

SCOPE:

This Policy applies to all Township employees, including but not limited to regular, temporary and contract employees (collectively called "Employees"), in addition to Council members, volunteers, students and interns and appointed committee and/or board representatives.

DEFINITIONS:

"Standard Business Hours" – means the standard business hours of the Township of Nipissing Township Office which are Monday to Friday, 8:30 am to 4:30 pm, closed each day from 12:00 to 12:30 p.m. and closed statutory holidays and Remembrance Day.

"Social Media Administrators" – means Township of Nipissing Staff authorized by the Municipal Administrator to operate and manage the Township Website and Social Media Accounts.

"Township" – means The Corporation of the Township of Nipissing.

POLICY DETAILS:

Website and Social Media Purpose

The primary purpose of the Township Website and Social Media pages is to convey information to members of the public, including but not limited to:

a) Publishing Council meetings, agendas, minutes and applicable by-laws/documents to ensure accountability and transparency.
b) Information about municipal programs, services, activities, amenities, and events;
c) To promote the Township of Nipissing economic, social, and cultural quality of life;

The primary purpose of the Township Website and Social Media platforms is to convey information to users; not to provide free and open dialogue between users. Communications made through Website and Social Media messaging systems shall, in no way, be deemed to constitute legal notice to the Township or any of its agencies, officers, employees, agents or representatives, with any respect to existing or potential claims or cause of action against the Township or any of its agencies, officers, employees, agents or representatives, where notice to the Township is required by any federal, provincial, or local laws, rules, or regulations.

All content posted to the Website and/or Social Media is to be approved by the Municipal Administrator or designate.

Complaints and/or By-Law enforcement matters will not be managed or responded to from Social Media but will be directed to correct reporting methods within the Township administration policies.

Website and Social Media Platforms

The Township of Nipissing operates and maintains the following:

Website:	www.nipissingtownship.com
Facebook Page(s):	Township of Nipissing page Township of Nipissing Fire Department page Nipissing Township Museum page Township of Nipissing Recreation Committee
YouTube Channel:	https://www.youtube.com/channel/UC2XSMZqRNHbwVppelfKcEXw
Twitter:	Township of Nipissing Fire Department

Hyperlink Policy

The purpose of the Township Website and Social Media platforms is to provide information about its government, services and attractions. The Township Website may contain hyperlinks to other websites. The Township is not responsible for, and does not endorse, the information on any hyperlinked website unless specifically stated.

The following criteria will be used by the Township to decide whether to grant requests for hyperlinks from its Website and/or Social Media platforms.

The Township Website will provide hyperlinks to websites for:

a) Government Ministries and educational institutions;
b) Organizations related to the Township's tourism industry or registered to be listed in the Township's Business Directory;
c) Generally recognized community or civic organizations;
d) Organizations providing information about art, cultural, and sporting activities in the Township.

The Township Website will not provide hyperlinks to websites for:

a) Candidates for elected office, including municipal, provincial or federal offices;
b) Political organizations or other organizations advocating a position on a local, provincial or federal issue;
c) Corporate or other for-profit organizations unless they fit the criteria stated above;
d) Individual or personal home pages.

Hyperlinks will not be considered or approved by the Township if the exhibition of the content within the browser would also exhibit one or more of the following categories:

a) Content which graphically depicts or describes violence, nudity and/or sexual activities in a way designed to evoke prurient interest;
b) Content which facilitates or incites crime or is racist;
c) A hyperlink that directly links to other content that when perceived within a browser is in violation of any of the prohibited content stated above;
d) Discussion groups, chat rooms, bulletin boards, and other largely unedited content created by individuals who are not owners, operators, or agents of the Township Website;
e) Websites containing information that violates any of the Township's equal opportunity policies;
f) Any other content that the Municipal Administrator or designate deems inappropriate.

Websites that have been approved and linked from the Township's Website, but subsequently demonstrate any of the above categories of content, will be unlinked from the Township's Website without notice.

All other community events that are open to the public, can be submitted through the website contact portal for review and approval on the Township of Nipissing Notice and Events page.

Privacy Policy

The protection of individual privacy is a concern to the Township, and is governed by local and provincial laws. The Township has created this privacy statement in order to demonstrate its commitment to privacy. The following discloses the Township's information gathering and dissemination practices for its website.

No personally identifiable information is automatically collected about visitors who simply browse the Township's Website or who download information from it.

The Township web servers maintain logs of user activity in order to help manage the Website. Information stored in these logs does not identify the user personally. The logs store such things as the domain name and IP address from which a user accessed the Township's Website; the type of browser and operating system they used; the date and time they accessed the website; the pages they visited; and the country or region of the world from which they accessed the website.

The Township uses this information to learn how many visitors the website has, where they are coming from, which parts of the Township's Website are of the most interest to visitors, and other facts that will help improve the website and the services offered.

While no Website can protect itself against all eventualities, every effort is made to protect any sensitive personal information provided by users. The Township will not rent, sell or give away any information identifying users individually (name, address, email address, phone number, etc.) to third parties for marketing or mailing list purposes.

As a governmental agency, the Township is governed by Ontario's *Municipal Freedom of Information and Protection of Privacy Act* (MFIPPA).

Disclaimer of Liability

The Township of Nipissing shall not be held liable for any improper or incorrect use of the materials or information contained on the Website and/or Social Media platforms and assumes no responsibility for any user's use of them. In no event shall the Township of Nipissing be liable for any damages, whether direct, indirect, incidental, special, exemplary or consequential (including, but not limited to, business interruption or loss of use, data, or profits) regardless of cause, an on any theory of liability, whether in contract, statute, strict liability, or tort (including negligence or otherwise) arising in any way out of the use of this Website, Social Media accounts or the materials and information contained on this Website, even if advised of the possibility of such damage. This disclaimer of liability applies to any damages or injury, including but not limited to those caused by any failure of performance, error, omission, interruption, deletion, defect, delay, computer virus, communication line failure, theft, or destruction of data, whether for breach of contract, tortuous behaviour, statutory liability negligence, or under any other cause of action.

Users are encouraged to consult with appropriate and accredited professional advisors for advice concerning specific matters before making any decision, and the Township of Nipissing disclaims any responsibility for positions taken by individuals or corporations in their individual cases or for any misunderstanding and losses, directly or indirectly, on the part of any user.

Disclaimer of Warranties/Accuracy and Use of Information

The materials posted on the Township Website and/or Social Media platforms are provided "as is" and without warranties of any kind expressed or implied. To the fullest extent permissible under applicable law, the Township disclaims all warranties, expressed or implied, including but not limited to, implied warranties of merchantability, fitness for a particular purpose and title to any of the materials provided on this Website. The Township does not represent or warrant that the functions contained in the materials will be uninterrupted or error-free, that defects will be corrected, or that this Website or the server that makes it are free of viruses or other harmful components. The Township does not warrant or make any representations regarding the use or the results of the use of the materials, or through links to other websites, in terms of their correctness, accuracy, reliability or otherwise. The user (and not the Township of Nipissing) assumes the entire cost of all necessary servicing, repair, or correction.

Changes are made periodically to many municipal documents, including municipal bylaws, regulations, guidelines, and schedules, and these changes may or may not be reflected in the materials or information present on the Township of Nipissing Website. Additionally, because the Website is frequently under development, materials and information may be deleted, modified or moved to a different part of the Website and/or Social Media accounts by the Township without advance notice.

Administration and Permission

Approval authority for all changes to the Township Website and/or Social Media will rest with the Municipal Administrator or designate.

The Website and Social Media accounts are monitored only during business hours.

Staff shall not participate in conversations or respond to questions in group comments.

Questions received through private/direct messages will be responded to during regular business hours.

Social Media Policy

Social Media Introductory Statement

The information included on the Township's Social Media pages/platforms is for the purpose of sharing municipal-related information only. The Township of Nipissing is not responsible for the comments made by followers or members of this page and reserves the right to remove any content that is inappropriate, as outlined in our rules of conduct. Posts that are abusive, hateful, threatening, discriminatory, defamatory, profane or otherwise offensive will be deleted or hidden, and users who make such posts may be blocked or banned.

Social Media Rules of Conduct

Content, posts, photographs, and comments containing any of the following content will not be allowed and will be removed at the discretion of the Municipal Administrator or designate(s):

a) Comments unrelated to the Township of Nipissing;
b) Profane language or content;
c) Content that promotes, fosters, or perpetuates discrimination (including but not limited to race, creed, colour, age, religion, gender, marital status, status with regard to public assistance, national origin, physical or mental disability or sexual orientation);
d) Sexual content or links to sexual content;
e) Commercial advertising;
f) Content encouraging illegal activity;
g) Information that may compromise the safety or security of the public or public systems;
h) Violation of legal ownership interest of any other party (copyright and intellectual property infringement);
i) Content for the purposes of promoting a candidate for municipal, provincial, or federal election;
j) Content that is believed to be inappropriate or without merit in the opinion of the Township of Nipissing Municipal Administrator or Designate.

Guiding Principles for Online Social Media for Employees and Members of Council

Members of Council should refrain from making comments on Township accounts.

These online Social Media principles are intended to outline how Township values should be demonstrated in the Social Media space and to guide staff participation in this area, both when staff are acting on behalf of the Township or participating personally.

Principles and Values Specific to the Online Social Media Community.

Transparency in social media engagement: The Township does not condone manipulating the social media conversation by creating "fake" posts designed to mislead followers and control a conversation. Every Website, "fan page", or other online destination that is ultimately controlled by the Township must make that fact known to users and must be authorized according to applicable internal protocols in order to track and monitor the Township's online presence.

Protection of our citizens' privacy: We shall be conscientious regarding any personally identifiable information that we collect, including how we collect, store, use or share that information, all of which should be done pursuant to applicable municipal freedom of information acts and privacy policies.

Respect of copyrights, trademarks, rights of publicity, and other third-party rights in the online social media space, including user-generated content: In this situation, the Township will control this area by defining the Township's online Social Media contributors whose responsibility will be speaking/responding on the Township's behalf. They will work with other departments to make informed and sound responses.

Utilization of best practices: The Township will listen to the online community, and comply with applicable regulations to ensure that the Online Social Media Policy remains current and reflects the most up-to-date and appropriate standards of behaviour.

The following principles guide how the Township must be represented in an online, official capacity when speaking "on behalf" of the Township:

a) **Be recognized as an official social media contributor**: All employees who wish to officially represent the Township must be recognized by the Municipal Administrator prior to beginning or continuing these activities.
b) **Follow the Township's policies**: As a representative of the Township, they must act with honesty and integrity in all matters. This commitment is true for all forms of Social Media.
c) **Be mindful that you are representing the Corporation:** As a Township representative, it is important that all posts convey the same positive, informative spirit and tone that the

Township instills in all of its communications. Be respectful of all individuals, races, religions and cultures; how you conduct yourself in the online Social Media space not only reflects on the individual – it is a reflection of the Corporation of the Township of Nipissing.

d) **Fully disclose any affiliation with the Township**: All employees who are communicating on behalf of the Township should always disclose their name and affiliation. It is never acceptable to use aliases or otherwise deceive people. An individual's relationship with the Township must be stated from the outset.
e) **Keep records**: It is critical that records of interactions in the online Social Media space are kept and the activities of those engaging in the platform are monitored. Because online conversations are often fleeting and immediate, it is important to keep track of them when officially representing the Township. Remember that online statements can be held to the same legal standards as traditional media communications. Keep records of any online dialogue pertaining to the Township.
f) **When in doubt, do not post**: Employees are personally responsible for their words and actions, wherever they are. As an online contributor, they must ensure that their posts are completely accurate and not misleading, and that they do not reveal non-public information about the Township. Exercise sound judgment and common sense, and if there is any doubt, DO NOT POST IT. In any circumstance in which they are uncertain about how to respond to a post, discuss it with the Municipal Administrator or Designate.
g) **Give credit where credit is due and don't violate others' rights**: Do not claim authorship of something that is not written by you. If using another party's content, make certain that they are credited for it in the post and that they approve of the utilization of their content. Do not use the copyrights, trademarks, publicity rights, or other rights of others without the necessary permissions of the rights-holder.
h) **Remember that even the smallest posts can have large ramifications**: The way that an online questions is answered might be accurate but can be misinterpreted or misconstrued. Keep that "comprehensive view" in mind when participating in online conversations.
i) **Know that the Internet is permanent**: Once information is published online, it is essentially part of a permanent record, even if you "remove/delete" it later or attempt to make it anonymous. If a complete thought, along with the context, cannot be squeezed into a character-restricted space (such as Twitter), provide a link to an online space where the message can be expressed completely and accurately.

About the Township

The following principles guide how Township employees (including the Mayor and Council) must represent the Township in an online, official capacity when speaking about the Township including private and personal Social Media accounts:

a) **Follow the Corporation's policies**: As an employee and a representative of the Township, conduct must reflect honesty and integrity in all matters. This commitment is

true for all forms of Social Media. These principles are to guide actions at work and are also applicable to personal activities online.

b) **You are responsible for your actions**: Anything posted that may potentially tarnish the Township's image will ultimately be your responsibility. We encourage you to participate in the online Social Media space, but urge you to do so properly, exercising sound judgment and common sense.

c) **Be conscious when mixing work and personal lives:** Online, personal and business personas are likely to intersect. The Township respects the free speech rights of all of its employees, and ask that employees keep in mind that citizens, colleagues, and supervisors often have access to the online content that is posted. When publishing information online that can be seen by more than friends and family, be aware that information originally intended for just friends and family can be forwarded on. Remember to never disclose non-public information about the Township (including confidential information), and be aware that taking public positions online that are counter to the Township or political interests may cause conflict.

d) **Refrain from responding to negative posts or reacting to negative or disparaging remarks about the Township, Council, Staff or the operations as a whole:** Forward the information to the Municipal Administrator for further action.

e) For individuals who hold elected positions or who work in politically sensitive areas, a policy of this nature does not by itself exempt them from special responsibility when posting online. By virtue of their position, these individuals should consider whether personal thoughts they publish may be misunderstood as expressing the positions or opinions of the Township, and/or its staff. For individuals in positions like this, caution is advisable and when in doubt it is recommended to check with the Municipal Administrator.

Monitoring of Policy

The Municipal Administrator in consultation with the Township Council will maintain this policy.

Designated Communicators and Social Media Administrators for the Township of Nipissing

Website	Municipal Administrator or Designate
Twitter	Municipal Administrator or Designate; Fire Chief or Designate
Facebook:	Township of Nipissing Page – Municipal Administrator or Designate Fire Department Page – Fire Chief or Designate Nipissing Township Museum – Museum Manager or Designate Township of Nipissing Recreation Committee – Municipal Administrator or Designate